



U.S. Department
of Transportation

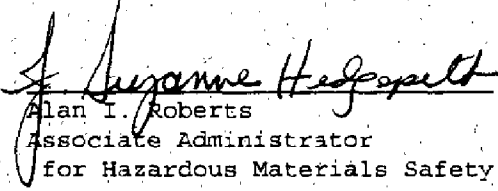
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 3768 (EXTENSION)
FIFTH REVISION August 7, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 3768 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 3 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Vanchem, Inc.
Lockport, NY

September 27, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 3768
(FOURTH REVISION)

1. Vanchem, Inc., Lockport, New York, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain flammable and corrosive liquids for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of DOT MC-304, DOT MC-307, and DOT MC-312 cargo tanks, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Vanchem, Inc.'s application dated July 1, 1986, submitted in accordance with 49 CFR 107.105 and additional information dated September 2, 1986, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. Corrosive materials: Ethylene bis chloroformate, n-Butyl chloroformate and Benzyl chloroformate.

b. Flammable liquids: Ethyl chloroformate, Methyl chloroformate, Isobutyl chloroformate, Isopropyl chloroformate, and sec-Butyl chloroformate.

4. PROPER SHIPPING NAME (49 CFR 172.101). The generic commodity description or specific chemical name, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.3a, 173.119, 173.245, 173.288.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is an insulated DOT Specification MC-304 or MC-307 cargo tank complying with §178.342-5; or an MC-312 cargo tank. Any manhole box used must allow for upward discharge of any vented product.

a. Each MC-304, MC-307 or MC-312 tank must meet the following:

1. Each cargo tank must have a minimum design pressure of 25 psig;

2. Shell ring reinforcements must be external to the tank;

3. If discharge piping is located in the rear of the unit, the rear bumper must meet §178.340-8(b).

4. Piping must conform to §178.340-8(d);

5. Each cargo tank must be precooled to 30°F or below and must be adequately insulated to prevent undue venting of the product during transportation. Venting shall be considered excessive if it consists of other than short, infrequent releases. Materials which are toxic by inhalation, meeting the criteria contained in 49 CFR 173.3a(b), may not vent during transportation.

b. Each cargo tank used to transport isopropyl chloroformate, sec-butyl chloroformate or isobutyl chloroformate must:

(1) Be marked "INHALATION HAZARD" in letters at least three and one-half inches high on a contrasting background in close proximity to the required placards;

(2) Be a DOT Specification MC 307 cargo tank having a design pressure of at least 35 psig;

(3) Have no bottom outlets; and

(4) Be insulated with a minimum of four inches of fiberglass insulation compressed to three inches covered with a steel jacket.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of fire or accident.

c. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 3768".

d. The following additional requirements apply to the transportation of isopropyl chloroformate, sec-butyl chloroformate or isobutyl chloroformate:

(1) This exemption serves as a special approval under the provisions of 49 CFR 173.3a(a)(3).

(2) Each motor carrier used to transport packagings authorized by this exemption must have a safety rating, as assigned by the Office of Motor Carrier Safety Field Operations (OMCSFO), Federal Highway Administration, of "Satisfactory". Written verification of the safety rating for each motor carrier must be obtained at least once each year. A copy of the safety rating notification letter for each motor carrier, as received from OMCSFO, must be submitted with the annual report required by this exemption.

(3) In addition to the requirements of 49 CFR 171.15 and 171.16, the Exemptions Branch, Office of Hazardous Materials Transportation (OHMT), must be notified of any incident involving damage to the packaging or loss of contents of material shipped under this approval.

(4) The Exemptions Branch, OHMT, shall be advised of the causes of the incident and any remedial action taken as a result of the incident as soon as practical after its occurrence.

(5) The Exemptions Branch, OHMT must be advised annually, within 30 days after the end of the calendar year, of the shipping experience of material covered by this approval. Failure to comply may result in immediate suspension of this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. September 30, 1988.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

OCT 24 1986

(DATE)

Address all inquiries to: Director, Office Hazardous Materials Transportation, Research and Special Programs Administration, U. S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA